OFFICE OF THE ASSISTANT SECRETARY OF WAR
3000 DEFENSE PENTAGON
WASHINGTON, DC 20301-3000

ACQUISITION
AND SUSTAINMENT

In reply refer to
DARS Tracking Number: 2026-O0003, Revision 1

MEMORANDUM FOR COMMANDER, UNITED STATES CYBER COMMAND (ATTN: ACQUISITION EXECUTIVE)
COMMANDER, UNITED STATES SPECIAL OPERATIONS COMMAND (ATTN: ACQUISITION EXECUTIVE)
COMMANDER, UNITED STATES TRANSPORTATION COMMAND (ATTN: ACQUISITION EXECUTIVE)
DEPUTY ASSISTANT SECRETARY OF THE ARMY (PROCUREMENT)
DEPUTY ASSISTANT SECRETARY OF THE NAVY (PROCUREMENT)
DEPUTY ASSISTANT SECRETARY OF THE AIR FORCE (CONTRACTING)
DEFENSE AGENCY AND DOD FIELD ACTIVITY DIRECTORS

SUBJECT: Class Deviation—Revolutionary Federal Acquisition Regulation (FAR) Overhaul Part 5, Defense FAR Supplement (DFARS) Part 205

Effective immediately, this class deviation revises and supersedes Class Deviation 2026-O0003, issued on December 18, 2025. This revision is necessary to implement section 875 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2025 and to align with FAR part 5.

Contracting officers must use—

- The revised FAR part 5, Publicizing Contract Actions, published on the Revolutionary FAR Overhaul web page at *https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-5* in lieu of the text codified at 48 CFR chapter 1 (*https://www.ecfr.gov*);

- The attached revised DFARS part 205, Publicizing Contract Actions, in lieu of the text codified at 48 CFR chapter 2; and

- The attached revised DFARS Procedures, Guidance, and Information (PGI) 205, Publicizing Contract Actions in lieu of the PGI text published on the Defense Pricing, Contracting, and Acquisition Policy web page at *https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html*.

This class deviation implements the following:

- Section 2 of E.O. 14275, Restoring Common Sense to Federal Procurement, which establishes the policy that the FAR "should only contain provisions required by statute or essential to sound procurement, and any FAR provisions that do not advance these objectives should be removed.

- Section 4(a) of E.O. 14265, Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base which requires the Secretary of War to eliminate or revise any unnecessary supplemental regulations or any other internal guidance, such as relevant parts of the Financial Management Regulation and Defense Federal Acquisition Regulation Supplement.

- The Office of Management and Budget memorandum, M-25-26 issued on May 2, 2025, titled, Overhauling the Federal Acquisition Regulation, which provided additional guidance to Federal agencies regarding the FAR overhaul.

- Section 875 of the of the NDAA for FY 2025 (Pub. L. 118-159) requires accessibility and clarity in covered notices for small business concerns.

- Use of the DoW exemption found at the codified FAR 5.202(a)(12) for proposed contract actions that will be solicited, awarded and performed outside the United States.

- Retirement of the term "synopses", replacing it with the more specific terms of "presolicitation notices", "solicitations", and/or "award notices."

- Minor corrections and stylistic changes to DFARS part 205 and PGI 205.

This class deviation remains in effect until rescinded or incorporated into the FAR, DFARS, and DFARS PGI. Inquiries regarding this class deviation can be addressed to *osd.pentagon.ousd-a-s.mbx.dfars@mail.mil*.

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Date: 2026.08.24 17:53:47 -04'00'

John M. Tenaglia
Principal Director,
Defense Pricing, Contracting, and
Acquisition Policy

Attachments:
As stated

PART 205—PUBLICIZING CONTRACT ACTIONS

205.002 Policy.

205.002-70 Preparation and transmittal of presolicitation notices, solicitations, and award notices.

(a) See PGI 205.002-70(a) for numbering notices.

(b) See PGI 205.002-70(b) for small business events.

SUBPART 205.1—PRESOLICITATION

205.101 Presolicitation notice.

205.101-70 Availability of DoD solicitations.
See PGI 205.101-70 for policy and procedures related to the Solicitation Module within the Procurement Integrated Enterprise Environment.

205.101-71 Exemptions.

(a) A presolicitation notice to the GPE is not required when the proposed contract action—

(1) Will be awarded and performed outside the United States and its outlying areas; and

(2) Will be solicited for only local sources.

(b) This exemption does not apply to proposed contract actions covered by the World Trade Organization Government Procurement Agreement or a Free Trade Agreement (see FAR subpart 25.4);

205.102 Paid advertisements.
Heads of contracting activities are delegated authority to approve the publication of paid advertisements in newspapers.

205.103-70 Special notices.

(a) See PGI 205.103-70 for instructions on the solicitation notice regarding timely definitization of equitable adjustments for change orders under construction contracts.

(b) See 207.107 for DoD-funded acquisitions that involve bundling.

SUBPART 205.2—SOLICITATION

205.201 Solicitation notice.

205.201-70 Timing.

(a) Allow at least 45 days response time when requested by a qualifying or designated country source (as these terms are used in part 225), and the request is consistent with the Government's requirement.

(b) When using competitive procedures, if a solicitation allowed fewer than 30 days for receipt of offers and resulted in only one offer, the contracting officer must resolicit and allow an additional period of at least 30 days for receipt of offers, except as provided in 215.202-71(d) and 215.202-71(e).

205.201-71 Exemptions.

If the exemption in 205.101-71 applies, the solicitation notice is not required.

SUBPART 205.3—SYNOPSES OF CONTRACT AWARDS

205.301 General.

205.301-70 Award notice exceptions to domestic source requirements.

(a) In accordance with 10 U.S.C. 4862(k), post a notice through the Governmentwide point of entry (*https://www.sam.gov*) for awards exceeding the simplified acquisition threshold that are for the acquisition of any clothing, fiber, yarn, or fabric items described in 225.7002-1(a)(1)(ii) through (x), if—

(1) The Secretary concerned has determined that domestic items are not available, in accordance with 225.7002-2(b); or

(2) The acquisition is for chemical warfare protective clothing, and the contracting officer has determined that an exception to domestic source requirements applies because the acquisition furthers an agreement with a qualifying country, in accordance with 225.7002-2(n).

(b) The notice must be submitted in sufficient time to permit its publication not later than 7 days after contract award.

(c) In addition to the information otherwise required in a notice of contract award, the notice must include one of the following statements as applicable:

(1) "The exception at DFARS 225.7002-2(b) applies to this acquisition, because the Secretary concerned has determined that items grown, reprocessed, reused, or produced in the United States cannot be acquired as and when needed in satisfactory quality and sufficient quantity at U.S. market prices."

(2) "The exception at DFARS 225.7002-2(n) applies to this acquisition, because the contracting officer has determined that this acquisition of chemical warfare protective clothing furthers an agreement with a qualifying country identified in DFARS 225.003."

205.301-71 Exemptions.
If the exemption in 205.101-71 applies, award notice is not required.

205.302 Public announcement.

(a) *Requirement*.

(i) The threshold for DoD awards is $9 million. Report all contractual actions, including modifications, that have a face value, excluding unexercised options, of more than $9 million.

(A) For undefinitized contractual actions, report the not-to-exceed (NTE) amount. Later, if the definitized amount exceeds the NTE amount by more than $9 million, report only the amount exceeding the NTE.

(B) For indefinite delivery, time and material, labor hour, and similar contracts, report the initial award if the estimated face value, excluding unexercised options, is more than $9 million. Do not report orders up to the estimated value, but after the estimated value is reached, report subsequent modifications and orders that have a face value of more than $9 million.

(C) Do not report the same work twice.

(ii) See PGI 205.302 for reporting of contract actions in paragraph (a)(i) of this section.

205.302-70 Exemptions.
If the exemption in 205.101-71 applies, the public announcement of the award is not required.

SUBPART 205.70—RELEASE OF INFORMATION

205.701 Contract clause.
Insert the clause at 252.205-7000, Provision of Information to Cooperative Agreement Holders, in solicitations and contracts, including solicitations and contracts using FAR part 12 procedures for the acquisition of commercial products and commercial services, except for solicitations and contracts solely for the acquisition of commercially available off-the-shelf items, that are expected to exceed $1.5 million. This clause implements 10 U.S.C. 4957.

SUBPART 252—SOLICITATION PROVISIONS AND CONTRACT CLAUSES

SUBPART 252.2—TEXT OF PROVISIONS AND CLAUSES

252.205-7000 Provision of Information to Cooperative Agreement Holders.
As prescribed in 205.701**,** insert the following clause:

PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS
(OCT 2024)

(a) *Definition.* As used in this clause—

Cooperative agreement holder means a State or local government; a nonprofit organization; a tribal organization (as defined in section 4(c) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304(l)); or an economic enterprise (as defined in section 3(e) of the Indian Financing Act of 1974 (25 U.S.C. 1452(e))) whether such economic enterprise is organized for profit or nonprofit purposes; which has an agreement with the Under Secretary of Defense for Acquisition and Sustainment to furnish procurement technical assistance to business entities (as defined in 10 U.S.C. 4951).

(b) The Contractor shall provide cooperative agreement holders, upon their request, with a list of those appropriate employees or offices responsible for entering into subcontracts under defense contracts. The list shall include the business address, telephone number, and area of responsibility of each employee or office.

(c) The Contractor need not provide the listing to a particular cooperative agreement holder more frequently than once a year.

(End of clause)

PGI 205–PUBLICIZING CONTRACT ACTIONS

PGI 205.002 Policy.

PGI 205.002-70 Preparation and transmittal of notices.

(a) *Numbering notices*.

(1) For a particular procurement, when submitting notices at different stages of the acquisition (e.g., sources sought notice, pre-solicitation notice, award notice), ensure the solicitation number is entered exactly the same way in order to allow all to be retrieved when a search is performed.

(2) Use only alpha-numeric characters in the solicitation and award number data elements in the Governmentwide point of entry (GPE) at *https://www.sam.gov*. Do not include hyphens, slashes, or other special characters.

(b) *Small business events*. When advertising an event for small businesses, post a “special notice” notice type and ensure the "title" data field begins with "Small Business Event". This will enable the public to easily search the GPE using the small business event calendar on the website.

(c) *Accessibility and clarity in notices*. Every notice must be clear, concise, and well-organized. Each notice must use simple keywords in its description and written in a manner to be understandable to the intended audience. This helps small businesses searching for contract opportunities on the GPE find and understand the notice easily. (Section 875 of the National Defense Authorization Act for Fiscal Year 2025)

PGI 205.1—PRESOLICITATION

PGI 205.101-70 Availability of DoD solicitations.

(a) *Policy*. The Solicitation Module within the Procurement Integrated Enterprise Environment (PIEE), accessible at *https://piee.eb.mil*, provides DoD a secure and auditable mechanism to request and receive proposals or quotes from industry.

(1) The Solicitation Module—

(i) Provides a single face to industry for accessing DoD solicitations and attachments;

(ii) Ensures time stamps for submissions are collected electronically, and records are retained in the contract file;

(iii) Provides a means to upload very large and varied solicitation attachments;

(iv) Provides the ability to restrict access to a limited group of identified offerors; and

(v) Automatically posts the required presolicitation notice, solicitation, or combined presolicitation notice and solicitation, as applicable, in the Governmentwide point of entry (GPE) (*https://www.sam.gov*) in accordance with FAR subpart 5.1.

(b) *Procedures*. Effective October 1, 2026, unless an exception applies, contracting officers must use the Solicitation Module for publishing unclassified solicitations and for receiving offers and quotes.

(1) *Exceptions*. The Solicitation Module is not required for—

(i) Requests for offers or quotes when limiting competition to a single source;

(ii) Actions using simplified acquisition procedures in accordance with FAR part 12.2 and 13;

(iii) Actions using emergency acquisition flexibilities in accordance with FAR part 18; or

(iv) Actions to be awarded outside the United States.

(v) Broad agency announcements.

(vi) Requests for offers or quotes for task orders or delivery orders under indefinite-delivery type contracts, blanket purchase agreements, or basic ordering agreements.

PGI 205.103 Special notices.

PGI 205.103-70 Definitization of equitable adjustments for construction.

(a)(1) *Notice regarding timely definitization of equitable adjustments for change orders under construction contracts.* To obtain definitization data for requests for equitable adjustment to include in solicitations for construction contracts, access the Procurement Action Required Reporting Online Tools (PARROT)/Protest Tracker and REA module in the PIEE website at *https://piee.eb.mil*. Search the PARROT Protest Tracker and REA module for the applicable military department or defense agency data and—

(i) If data exists, download the table and include it as an attachment to the solicitation notice in the GPE; or

(ii) If no data exists, then include the following statement in the Description section of the solicitation notice: "No data is available regarding the timely definitization of equitable adjustments for change orders under construction contracts." (See PGI 236.101-4 for reporting data on definitization of equitable adjustments.)

(2) Include a description of military department or defense agency policies or procedures, in addition to that outlined in FAR part 43, that apply to definitization of equitable adjustments for change orders under construction contracts. This description may be provided in a notice by including an address of an agency-specific, publicly available website containing this information.

(3) If the military department or defense agency does not have agency-specific

procedures, include the following statement: "There are no agency-specific policies or procedures that apply to the definitization of equitable adjustments for change orders under construction contracts."

PGI 205.3—SYNOPSES OF CONTRACT AWARDS

PGI 205.302 Public announcement.

(a) *Requirement*.

(ii) Departments and agencies must report contract actions—

(A) To the Office of the Assistant to the Secretary of Defense for Public Affairs;

(B) By the close of business the day before the date of the proposed award;

(C) Using report control symbol DD-LA-(AR) 1279;

(D) Including, as a minimum, the following:

(*1*) *Contract data*. Contract number, modification number, or delivery order number, face value of this action, total cumulative face value of the contract, description of what is being bought, contract type, whether any of the buy was for foreign military sales (FMS) and identification of the FMS customer.

(*2*) *Competition information.* Number of offers received.

(*3*) *Contractor data.* Name, address, and place of performance (if significant work is performed at a different location).

(*4*) *Funding data.* Type of appropriation and fiscal year of the funds, and whether the contract is multiyear (see FAR part 17).

(*5*) *Miscellaneous data.* Identification of the contracting office, the contracting office point of contact, known congressional interest, and the information release date.

(iii) Departments and agencies, in accordance with department/agency procedures and concurrent with the public announcement, must provide information similar to that required by paragraph (a)(ii) of this section to members of Congress in whose State or district the contractor is located, and the work is to be performed.